

FATHER'S PROPOSED PARENTING PLAN

IN THE CIRCUIT COURT OF BOONE COUNTY, MISSOURI

In re the Marriage of:

AMBER MCINTOSH,
Petitioner,

-vs-

SHINGAI SAMUDZI,
Respondent.

Case No.: 25BA-FC01732

Division No.: 8

A. PARENTS SUBJECT TO PLAN

The Petitioner Amber R. McIntosh (hereinafter "Mother") and the Respondent Shingai R. Samudzi (hereinafter "Father").

Each parent has an ongoing obligation to keep the other parent informed of any changes to their residence address, mailing address, telephone number, and email address.

B. CHILDREN SUBJECT TO PLAN

1. Ariko Kamali Samudzi, born December 5, 2017
2. Yara Charwe Samudzi, born June 11, 2021

C. LEGAL CUSTODY OF CHILDREN

1. Sole Legal Custody: Father shall have sole legal custody of the minor children, with the provisions set forth below.
2. Definition of Sole Legal Custody: Sole legal custody means that Father shall have final decision-making authority regarding all major decisions affecting the children's health, education, and welfare, including but not limited to decisions about schooling, tutoring, discipline, religious upbringing, child care providers, choice of medical providers, medical treatment, and extracurricular activities.

3. **Obligation to Confer:** Father shall confer with Mother and consider her input prior to making major decisions. Father shall notify Mother of all major decisions within 24 hours of making them, with a written explanation of the basis for the decision.
4. **Emergency Decisions:** Either parent may make emergency decisions affecting the health or safety of the children while the children are residing with that parent. A parent who makes an emergency decision shall share the decision with the other parent as soon as reasonably possible.
5. **Day-to-Day Decisions:** Each parent shall make decisions regarding day-to-day care and control of the children while the children are with that parent, consistent with the major decisions made under this plan.

Educational Decisions/Information:

- a. Father shall make all final decisions regarding the children's education, including school enrollment, school district, tutoring, and educational programming.
- b. Each parent shall keep the other parent reasonably informed of the educational progress of the children, provided however, that each parent has an obligation to first contact the school and request a copy of the school calendar and report cards to be directly sent to them.
- c. Each parent shall notify the other of parent-teacher conferences, open houses, performances, field trips, athletic events and other significant extracurricular activities/events which the parents are invited to attend. Each parent may attend all such events.
- d. Each parent may confer with teachers and counselors. Each parent may review and copy any school records about the children in the manner provided by law.

Medical, Dental and Health Care Decisions:

- a. Father shall have final decision-making authority on significant medical, dental and health care decisions regarding the children after conferring with Mother, unless it is an emergency and prior consultation is impossible under the circumstances.
- b. Each parent shall provide the children with routine health and dental care as needed while residing with that parent.
- c. Each parent shall promptly inform the other parent of any concerning medical or dental condition of a child observed while the child is residing with that parent.

- d.** Father shall select the primary health care providers for the children after consultation with Mother. Both parents shall use the designated healthcare providers as the children's primary healthcare providers unless it is an emergency and it is medically unreasonable to do so under the circumstances. If a parent takes a child to a non-designated healthcare provider, then he/she shall be responsible for the cost of services provided which were not covered by insurance unless the parties agree in advance, in writing.
- e.** Each parent shall notify the other of the results of each child's medical and dental examinations. Each parent shall share any information regarding the medical and dental health of the children.
- f.** Each parent shall notify the other parent immediately of any health care emergencies involving a child. In the event that a child requires hospital treatment, each parent may visit with the child in the hospital as may be medically reasonable under the circumstances.
- g.** Each parent may consult with all health care professionals who provide any medical and/or dental services for the children.
- h.** Each parent shall have full and complete access to the children's medical and dental records.
- i.** Each parent shall provide the other parent with a copy of the children's health insurance card.

Extracurricular Activities:

- a.** Each parent shall consider and accommodate the academic and social commitments of the children as far as are reasonably practicable under the circumstances in the best interests of the children.
- b.** Each parent shall inform the other parent of all school, sporting and other special activity notices and cooperate for the children's consistent attendance at such events.
- c.** Unless otherwise agreed between the parents, the parent exercising physical custody of the children at the time of an activity shall provide transportation for the children to and from the activity.
- d.** Each parent may determine the children's activities and social events while residing with that parent, subject to the cost-sharing provisions in Section I of this plan.
- e.** The children's academic school commitments and requirements shall take priority over participation in sports, social events and other extracurricular activities.

Child Care:

- a. Each parent may choose appropriate child care providers and/or caregivers during his/her timesharing, including authorization for a non-parent to conduct pickups/drop-offs of the children.

Information Sharing:

- a. Information about the children that is readily available is the responsibility of that parent to gather. Information that either parent receives that is not readily available to the other parent will be provided to that other parent in a timely manner.
- b. Each parent will notify the other parent within 24 hours of the time they schedule, or are notified of, any medical, mental health, scholastic, or extracurricular appointments for the children (or immediately if 24-hour notice is not available). Each parent will also promptly notify the other parent of any appointment or extracurricular activity changes or cancellations.
- c. Each parent will “cc” the other parent on emails to professionals about the children.
- d. Each parent will promptly send a text to the other parent summarizing any children-related conversations engaged in with any professional.

D. PHYSICAL CUSTODY

- 1. Joint Physical Custody: Mother and Father shall have joint physical custody of the children subject to each other's periods of parenting time.
- 2. Address for School Mailing: The children's school mailing address shall be designated by Father consistent with his authority over educational decisions under Section C of this plan.

E. CUSTODY SCHEDULE**1. Ground Rules for Parenting Time:**

- a. Holidays and special days shall always take precedence over the regular custody schedule.
- b. In the event that either parent misses a period of parenting time with the children due to no fault of their own (e.g., due to illness, work emergency, transportation problem, weather emergency, etc.) then the parents shall reschedule an equivalent period of makeup parenting time later which is mutually convenient to the parents.

- c. The parents will follow the holiday schedule of the school district calendar where the children attend.
- d. If the children are not in school, the parent who had the children overnight the evening before will have the children until 5:00 p.m. the day the children are not in school.
- e. If the children are sick, the parent who had the children overnight the evening before will have the children until 5:00 p.m. the following day.
- f. The parents should attempt to work out any parenting time disputes between themselves first. This Parenting Plan serves as a governing document if the parties cannot agree between themselves.
- g. Any written agreement between the parties will supersede this written document for the specific matter addressed.
- h. The parents will not, nor will they allow others to, purchase a smartphone for the children until such time as both parents mutually agree on the children's phone possession and guidelines for phone usage, and provide written acknowledgement of such agreement.

2. School Year Custody Schedule:

- a. The parties shall rotate having custody of the minor children on a weekly basis with exchanges on Fridays at 3:30 p.m.

3. Summer Schedule:

- a. The parties will follow the same school year schedule during summer with these exceptions:
 - i. Father will have the right to up to eight (8) weeks of uninterrupted parenting time during summer vacation for international travel with the children, including travel to visit extended family in Zimbabwe and South Africa and/or for work-related purposes. Father shall provide notification of summer travel dates, including a basic itinerary, destination, and telephone numbers, at least 45 days in advance to Mother. Father must give notice of his dates by April 1st.
 - ii. Mother will have the right to two (2) weeks of uninterrupted parenting time during summer vacation. Notification of summer vacation dates, including a basic itinerary, destination, and telephone numbers will be given at least 30 days in advance to Father. Mother must give notice of her dates by May 1st.
 - iii. If a disagreement occurs over overlapping vacation dates, Father's dates will prevail.

iv. Mother shall have make-up parenting time equivalent to any weeks of her regular alternating schedule displaced by Father's international travel, to be scheduled within the three months following Father's return by mutual agreement.

4. Holidays:

The parties agree to be flexible with the holiday schedule. This holiday schedule will apply ONLY if the parties cannot otherwise agree:

Holiday	Even Years	Odd Years
Spring Break	Mother	Father
Easter Weekend (4:00 p.m. Friday to 6:00 p.m. Easter Sunday)	Father	Mother
Mother's Day Weekend (Friday 3:30 p.m. to Sunday 3:30 p.m.)	Mother	Mother
Father's Day Weekend (Friday 3:30 p.m. to Sunday 3:30 p.m.)	Father	Father
Memorial Day Weekend	Mother	Father
July 4th	Father	Mother
Labor Day Weekend	Mother	Father
Halloween (school dismissal/4:00 p.m. until 8:00 p.m.)	Mother	Father
Thanksgiving Break	Father	Mother
Christmas – First Half (school recess to Christmas morning 11:00 a.m.)	Mother	Father
Christmas – Second Half (Christmas morning 11:00 a.m. to December 29 at 5:00 p.m.)	Father	Mother
New Year's (December 29 at 5:00 p.m. to day before school resumes at 5:00 p.m.)	Father	Mother
Children's Birthdays	Mother	Father
Parent's Birthdays	Both	Both
3-Day School Holidays (MLK, Presidents' Day, etc.)	Both	Both

5. Transportation & Exchanges:

a. Exchanges will take place at each parent's home or school/daycare if applicable. The parent receiving custody of the children will be responsible for transportation unless the parties otherwise agree.

b. Each parent will make sure the children are ready at the time designated for exchanges of the children.

6. Telephone Access to the Minor Children:

a. The children will be allowed to request and/or initiate contact with the non-timesharing parent by phone, email, video chat or text at any time. Neither parent will enact “consequences” to prevent this contact. Contact between the children and the parents will be private and unmonitored.

7. Changes in the Parenting Time Schedule:

a. If circumstances require a change in the physical custody schedule, the parents shall be flexible and make reasonable alterations as appropriate.

b. Each parent shall promptly notify the other parent if circumstances arise which make it necessary to temporarily change the custody schedule. Neither parent shall unreasonably refuse to agree to a change when the change is in the best interests of the children.

c. Neither parent shall be required to temporarily depart from the custody schedule without at least 72 hours prior notice, unless the change is due to an emergency reasonably beyond control.

d. The parent requesting the change shall be responsible for payment of all additional child care expenses which may become necessary because of the change.

8. Rules and Arrangements for Parenting Time:

a. Each parent shall have clothing, toys and other items for the children in his or her home for the children’s use.

b. Unless otherwise agreed, all clothing, medication and toys sent with the children at the beginning of a visit shall be washed and returned at the end of a visit.

c. In the event either party will be unavailable to care for the minor children for ten (10) or more consecutive hours or due to travel during their parenting time, the other parent will be offered the right to care for the children over any non-family caregiver. This provision does not apply: (1) when the children are spending time with relatives and/or attending family functions; or (2) when the children are engaged in activities with peers at the children’s request, such as a peer sleepover or extracurricular activity. The parent offering the first right to care will specify via written communication the hours of care needed. The parent accepting the extra timesharing will be responsible for picking up and returning the children at the hours designated by the offering parent. The parents will not

ask each other why they are being offered the extra timesharing, but instead will simply accept or deny the opportunity.

F. COMMUNICATION PROCEDURES BETWEEN PARENTS

1. Rules and Procedures:

a. The parents shall communicate primarily via WhatsApp. All communications between the parents shall be courteous and businesslike, without any implied or open criticism. If there is an emergency (hospitalization, illness, inability to pick up children as scheduled) then telephone call is permitted, with follow-up text message to memorialize the information provided.

b. The parents shall not use the children to convey messages between the parents.

c. Neither parent shall permit any third parties to interfere with communication between the parents.

d. Each parent will recognize that parenting style differences exist between the parties, and that it is the children's right to be spared from experiencing or witnessing any animosity or ill feeling between the parents. Each parent will therefore avoid any action that may reasonably be expected to create loyalty conflict in the children.

e. The parents will not ask the children where they want to live or encourage the children in any way to choose between their parents.

f. The parents will use child-friendly vocabulary (such as "timesharing" or "when you are in your other home" or "mother/father") with the children and in the children's presence.

g. The parents will not, nor will they allow others to, probe the children about their time at the other home, about their other household members, or about any coparenting matter.

h. Each parent shall keep the other informed of their residence address, mailing address, telephone number, and work address.

i. Neither parent shall say or do anything in the presence or hearing of the children that would diminish the children's love or affection for the other parent and shall not allow others to do so.

j. Each parent shall provide the other parent with a written travel itinerary (including location destination, flight information, contact information) at least seven days prior to departure if the children will be traveling out of the state for one or more overnights.

k. Each parent may travel domestically or internationally with the children. Parents will cooperate in providing any necessary permissions including but not limited to passport authorization.

l. The parents shall not discuss court-related, financial and other business issues when the children are present.

G. DISPUTE RESOLUTION PROCEDURES

1. First Discuss and Attempt to Agree: If the parents disagree on issues regarding the children, they will first confer with each other, listen carefully to each other and attempt to resolve the matter between themselves. This Parenting Plan serves as the default if agreement cannot be reached.

2. Mediation: If the parents cannot resolve a dispute, either party may initiate mediation. The parties will agree on a mediator. All costs of mediation will be equally divided.

H. RELOCATION OF THE PARENTS OR CHILDREN

Absent exigent circumstances as determined by a court with jurisdiction, the parents shall notify, in writing by certified mail, return receipt requested, and at least sixty days prior to the proposed relocation, the other party of any proposed relocation of the principal residence of the children, including the following information:

- a. The intended new residence, including the specific address and mailing address, if known, and if not known, the city;
- b. The home telephone number of the new residence, if known;
- c. The date of the intended move or proposed relocation;
- d. A brief statement of the specific reasons for the proposed relocation;
- e. A proposal for a revised schedule of custody or visitation with the children; and
- f. That the other party, if that party is a parent, has the right to file a motion and affidavit seeking an order to prevent the relocation within thirty days of receipt of the notice.

The obligation to provide this information continues as long as one parent remains entitled to custody. Failure to notify may be considered in a proceeding to modify custody or visitation. Reasonable costs and attorney fees may be assessed against a party who fails to give required notice. In accordance with §452.377 RSMo., the residence of the children may be relocated sixty (60) days after providing such notice unless, within thirty (30) days after receipt of such notice, a parent files a motion seeking to prevent the relocation.

I. EXPENSES OF THE CHILDREN

1. Child Support:

Neither party shall pay child support to the other given the equal timesharing arrangement and each parent's obligation to provide for the children during their respective parenting time.

2. Cost-Sharing Principles:

- a. Joint Expenses: The parents will pay any agreed-upon out-of-pocket medical or extracurricular activity expenses equally (50/50). Neither parent may financially obligate the other on any joint decision issues without the other parent's written consent.
- b. Unilateral Expenses: If a parent incurs a cost which requires joint agreement without first receiving written acknowledgement of that agreement, the parent incurring the cost shall be solely responsible for the costs incurred. This includes situations where the non-incurring parent participates in logistics related to the activity (such as transportation, scheduling, or coordination). Logistical participation does not create financial obligation. Each parent retains the authority to enroll the children in any activity at that parent's sole expense during their parenting time.
- c. Receipts and Reimbursement: The parent incurring a joint expense shall provide a copy of the receipt to the other parent within ten (10) days. The non-incurring parent shall reimburse their share within thirty (30) days of receipt of proof of payment. Receipts shall be submitted no less than quarterly. No expense shall be eligible for reimbursement if the bill is not submitted within four (4) months of the date the expense is incurred.

3. Medical Insurance and Health Care Expenses:

- a. Reasonable medically necessary medical, dental, and/or vision care expenses not covered by insurance shall be paid 50/50 by the parents, subject to the reimbursement procedures described above.
- b. Father will maintain the minor children's health insurance coverage. In the event Mother obtains employment providing health insurance, both parties will evaluate the most beneficial coverage arrangement for the children.
- c. Each parent shall provide the other parent with a copy of the children's health insurance card.

4. Educational Expenses:

- a. The children's school enrollment shall be determined by Father pursuant to his sole legal custody authority under Section C.
- b. Tuition and educational expenses for any school selected by Father shall be shared equally (50/50) by both parents, subject to the reimbursement procedures above.
- c. If Mother objects to the school selected by Father, she may request mediation under Section G. Pending resolution, the status quo shall prevail.

5. Extraordinary Expenses:

- a. Mutually agreed-upon extracurricular activity expenses shall be shared equally (50/50), subject to advance written agreement and the reimbursement procedures above.
- b. Either parent may enroll the children in any activity at that parent's sole expense during their parenting time.

6. Tax Dependency Exemptions:

- a. The parents shall alternate claiming both children for federal and state tax purposes. Father shall claim both children in odd years. Mother shall claim both children in even years. Both parties will execute all necessary documents including IRS Form 8332 by January 31 of each year.

J. ADDITIONAL PROVISIONS

- 1. Passports: Both parents shall cooperate in obtaining and maintaining valid passports for the children. Neither parent shall withhold passport authorization unreasonably. Each parent shall have access to the children's passports during their parenting time, including extended summer travel.
- 2. Mental Health: Each parent shall maintain their own mental health care as appropriate and shall comply with any recommendations of licensed mental health professionals regarding the children's welfare.
- 3. Status Quo Pending Agreement: For any decision involving a new activity, service, school, or any other change for the children that involves both parents' input, in the case of dispute the status quo will prevail and no change will be made pending resolution through the dispute resolution procedures in Section G, subject to Father's final decision-making authority under Section C.

Mother

Amber R. McIntosh

Date

Father

Shingai R. Samudzi

Date